

Council's power to lay down provisions concerning substantive law in the Implementing Regulations.

Thus the Enlarged Board of Appeal held that the legislator is entitled to provide for issues of substantive law in the Rules of the Implementing Regulations. However, a Rule, not having a legal history of its own, must be clear enough to indicate to those applying it in what way the legislator intended the Article to be interpreted by means of that Rule. This, however, was not the case for R. 26(5) EPC. R. 26(5) EPC did not give any useful guidance on how to interpret the term "essentially biological process for the production of plants" in Art. 53(b) EPC and therefore that term had to be interpreted on its own authority. This was for the Enlarged Board to do.

In T. 1063/18, the board considered that new R. 28(2) EPC was in conflict with Art. 53(b) EPC as interpreted by the EBA in decisions G 2/12 and G 2/13. In accordance with Art. 164(2) EPC, the provisions of the Convention prevailed. The Administrative Council was not, in the light of Art. 33(1)(b) and 35(3) EPC, competent to amend the Convention, here Art. 53(b) EPC, by amendment of the Implementing Regulations, here R. 28(2) EPC. On 4 April 2019 the President of the European Patent Office referred to the Enlarged Board of Appeal points of law on the interpretation of Art. 164(2) EPC and the assessment of R. 28(2) EPC under said provision. For the Enlarged Board in G 3/19 (OJ 2020, A119) there was ultimately no conflict between R. 28(2) EPC and the new interpretation of Art. 53(b) EPC. Hence, contrary to the board's view in T. 1063/18, Art. 164(2) EPC was not relevant. The interpretation of Art. 53(b) EPC arrived at in G 2/12 was not set in stone either; it could indeed change, and it was inappropriate to disregard the introduction of R. 28(2) EPC, which reflected the contracting states' intention and called for a dynamic interpretation of Art. 53(b) EPC.

7. Changes in relation to an established practice and interpretation

In G 2/07 (OJ 2012, 130) the Enlarged Board of Appeal stated that there can be no "legitimate expectation" that an interpretation of a substantive provision governing patentability given in a decision of the boards of appeal will not be overruled in the future by the Enlarged Board, since recognising such an expectation as legitimate would undermine the function of the Enlarged Board of Appeal. This holds particularly true for issues on which there is no solid body of decisions all to the same effect but where instead the relevant jurisprudence consists only of a very limited number of individual decisions, as is presently the case. In the past, the Enlarged Board has granted a transitional period in cases in which the Enlarged Board's decision has brought about a change in relation to an established procedural practice which the parties could not be expected to foresee. By contrast, for the reasons given above, the existence of "legitimate expectations" has never been acknowledged for issues before the Enlarged Board concerning the correct application, i.e. interpretation, of substantive patent law.

In opinion G 3/19, the Enlarged Board abandoned the interpretation of Art. 53(b) EPC previously arrived at in G 2/12 but held that its new interpretation (in G 3/19) was not retroactive.

8. Interpretation of the various language texts of the EPC (Article 177 EPC)

In J 8/95 it was held that even if one language version of a provision of the EPC were found to differ from the other two versions, no legal consequences could be derived from that version other than those which could be derived from the other two versions – regardless of the language of the proceedings. A difference in the wording in one language would have to be considered only in so far as it could form one element of the interpretation. In the case at issue, however, the provision under consideration, even in the allegedly different version, could readily be understood in context in the same way as the other two official languages, with the result that all three versions of the provision corresponded as far as content was concerned (see also T 2321/08).

Observing that, while the EPC did not actually define the terms "fact" and "argument", Art. 114(1) EPC, albeit in its English version only, distinguished facts, evidence and arguments, the board in T 1914/12 concluded that the legislature must have considered them to be three distinct categories. Taking the English version of Art. 114(1) EPC and (2) EPC, which seemed to it to reflect the legislative intention more accurately, it held that arguments had to be treated differently from facts and evidence and that the discretion provided for in paragraph 2 did not extend to late-filed arguments.

Opinion G 1/18 extensively assessed the three language versions, specifically with a view to interpreting Art. 108 EPC (see points IV.1(1) and IV.1(2)(b)).

Decision G 4/19 also referred to Art. 177 EPC in conjunction with Art. 33 of the Vienna Convention. On one specific point, the Enlarged Board considered that, for a proper understanding, it was more instructive to look at the German version of the "travaux préparatoires" than at the English text (see point 88 of the decision).

The board in T 844/18 recalled that Art. 33(4) of the Vienna Convention prescribes that in case of a difference in the meaning between two or more equally authentic texts, the treaty must be given the meaning which best reconciles the texts having regard to the object and purpose of the treaty. The board stated that in order to interpret "any person" in Art. 87(1) EPC, it was necessary to interpret the legal concept of "any person" in Art. 4A Paris Convention, the interpretation given in both treaties needing to be the same. This rose certain linguistic issues which must had to be borne in mind: the authentic text of the Paris Convention is written in French, the EPC is written in German, English and French, all texts being equally authentic (see points 30 and 37 ff. of the Reasons).

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1. Possibility of filing auxiliary requests

In the proceedings before the EPO main and auxiliary requests are allowed (for grant proceedings see e.g. T 79/89, OJ 1992, 283; for opposition proceedings see e.g. T 234/86, OJ 1989, 79). An auxiliary request is a request for amendment which is contingent upon the main request (or preceding auxiliary requests) being held to be unallowable, T 153/85 (OJ 1988, 1). It is also a request for amendment covered by R. 86(3) EPC 1973 (R. 137(3) EPC), Art. 96(2) EPC 1973 and R. 51(2) EPC 1973 (Art. 94(3) EPC and R. 71(2) EPC), and, during appeal proceedings, Art. 110(2) EPC 1973 and R. 66(1) EPC 1973 (R. 100(1) EPC) (T 79/89, OJ 1992, 283).

2. Order of requests

2.1. Requirement to specify the order of requests

The established system of main and auxiliary requests in the proceedings before the EPO provides that parties, when filing alternative sets of claims, must indicate the order of preference for each set of claims (R. 14/10, T 1125/13 of 25 June 2015, T 52/15). In T 255/05 the board held that under Art. 113(2) EPC 1973 (Art. 113(2) EPC) it was the applicant's responsibility to define the text on the basis of which it requested a patent to be granted. When the appellant, even after having been invited to do so by the board, did not clearly indicate the order in which its requests were submitted and what the exact content of each of these requests was, there was no text submitted or agreed by the

applicant within the meaning of Art. 113(2) EPC 1973. See also the summary of T 148/06 in chapter III.1.3.2. "Requests of equal ranking".

In T 1439/05 the board held that to avoid misunderstandings, the examining division should clarify the status of the requests before pronouncing its decision at the conclusion of oral proceedings.

2.2. Order of examination of requests

Before a decision can be taken on the basis of an auxiliary request, the main request has to be examined and decided upon (T 484/88). The board in T 169/96 pointed out that, under Art. 113(2) EPC 1973, the EPO was bound by the requests of the applicant or proprietor, and, in the case of main and auxiliary requests, this meant that the EPO was also **bound to the order of the requests** (see also T 540/02).

However, in T 911/06 the board held that this principle did not necessarily apply in proceedings before the boards. In the case in hand the appellant (patent proprietor) had requested maintenance of the patent in amended form according to new claim sets as higher ranking requests and review of the first instance decision as a lower ranking request. The board stated that applying the general principles of court procedure, such as the principle of party disposition (see G 8/91, OJ 1993, 346), to the order of the appellant's (patent proprietor's) requests might be inconsistent with the purpose of the inter partes appeal procedure as expressed in G 9/91 (OJ 1993, 408). The board considered that it was in line with the purpose of the appeal to examine first whether the department of first instance had correctly assessed the substance of the requests presented to it.

In the proceedings underlying R 8/16 the board had revoked the patent. The Enlarged Board held that, as a matter of principle, the technical board was free to examine the (pending) claim requests in any order, and therefore it was also free to conduct the discussion on them in any order, without having to give reasons. The principle of party disposition expressed in Art. 113(2) EPC did not extend so as to permit a party to dictate how and in which order a deciding body of the EPO might examine the subject-matter before it. The only obligation on the EPO was not to overlook any still pending request before a final decision was taken. The order of examination or discussion was a question of procedural economy, for which mainly the deciding body was responsible. As long as a discussion on the substantive issues of the still pending requests was possible, even if only by reference to discussions on other requests (see R 6/11), such a procedure was unobjectionable and the board had no particular duty to give reasons why it chose to proceed as it did.

In T 353/18 the board noted that there was no provision in the EPC establishing any legal primacy of the **clean version** over an **annotated version** of a request. If they were different, only a declaration by the patent proprietor could establish the valid one (in the case in hand: the clean version). At the same time, the appellant (opponent) who had relied on the correctness of the (incorrect) annotated version, should not suffer a disadvantage from this.

3. Admissibility of requests

3.1. Party's responsibility to define subject-matter by filing appropriate requests

In T 506/91 the board held that filing requests and deciding if several alternative requests were appropriate or not was a matter that in the end could only be decided by the party concerned and it should be routine for representatives to decide independently how to pursue their cases, including what requests to submit.

In T 382/96 the board stressed that one of the fundamental principles of European patent law was that responsibility for defining the subject-matter of a patent rested with the applicant (patent proprietor). The applicant (patent proprietor) could not offload this responsibility de facto onto the EPO or any other parties to the proceedings by filing a multitude of requests, let alone incompletely formulated request variants. Doing so constituted an abuse of procedure, as it overburdened the EPO and any other parties to the proceedings with work not originally theirs to perform and thereby hampered the orderly conduct of proceedings. Auxiliary requests which had not been verbally specified in more detail were inadmissible for the purposes of R 64(b) EPC 1973 (now R 99(2) EPC) because they did not identify the extent to which amendment or cancellation of the contested decision was requested; the same went for auxiliary requests for which no grounds had been set out (i.e. not substantiated) within the meaning of the third sentence of Art. 108 EPC 1973.

T 446/00 concerned a case in which a large number of requests was filed with an offer to amend the claims further if the board so wished; the board held that a party could not in that manner abdicate its responsibility to present its case to the board and that such requests were both inadmissible and an abuse of procedure.

In T 745/03 the board pointed out that it was up to a party to decide on the presentation of its case. When filing several sets of claims, a party usually listed them in order of preference, the least limited claims being a main request, the more limited versions auxiliary requests, so that if a higher order request should fail, then a lower, more limited request would still have a chance of success. In the case before the board this had changed to an approach which could more aptly be designated as "**pick and mix**", as independent claims present in higher order requests were also to be found in lower order requests in differing permutations of independent claims. The "pick and mix" approach can both give an impression of fishing around for something patentable and mean that some independent claims are not even the subject of a decision. See also T 221/06.

In R 11/08 the Enlarged Board confirmed that adopting a "pick and mix" approach could run the risk of requests being found inadmissible, abuse of procedure, and disadvantages for the party in question.

In T 1138/12 the board decided that an auxiliary request for maintenance of a patent on the basis of the claims it considered grantable from among those in a claim set was insufficiently defined and therefore inadmissible.